

Pivotext Terms of Use

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Welcome to Pivotext. These terms are the agreement between you and us. They set out what we provide, what we expect from you, and what happens if something goes wrong. We've written them in plain language, and each part starts with a short summary in italics, but the full text is what counts.

By creating an account or using Pivotext, you agree to these terms. If you don't agree, please don't use Pivotext. Questions are welcome at support@pivotext.com.

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Joining and using Pivotext

This part explains who these terms apply to, who can use Pivotext, and how accounts and invited accountants work. A word in bold keeps the same meaning everywhere in these terms.

1. You and Pivotext. When we say **you** or **your**, we mean you personally and any business, corporation or other organization you're authorized to act for. When we say

Pivotext, we, our or us, we mean Pivotext Software Inc., the company you contract with (see section 57).

2. Our services. Our **services** are the Pivotext website at pivottext.com, the Pivotext app, and any related features, exports and support we provide now or in the future.

3. Who can use Pivotext. You must be at least 18 years old and able to enter into a binding contract. If you use Pivotext for a company or other organization, you confirm you have authority to accept these terms on its behalf, and it is bound by them.

4. Your account and entities. You create an **account** to sign in. Inside it you set up one or more **entities**, meaning the individual or company whose records you keep. The person who creates an entity is its **owner** and controls it, including who else can see it.

5. Invited accountants. An owner can invite an accountant or bookkeeper (an **invited user**) to view an entity's records. Invited users must accept these terms too. Owners decide what invited users can see, can remove their access at any time, and are responsible for their activity and for resolving any disagreement with them over access.

6. Your right to use Pivotext. As long as you follow these terms and, on a paid plan, keep your subscription paid, we give you a personal, non-transferable right to use the services for your own record-keeping. This right ends when your account or subscription ends, or when an owner removes your access as an invited user.

7. Your responsibilities. You agree to give us accurate information and keep your email address current. You are responsible for the records you enter, for checking anything Pivotext produces before you rely on it, and for keeping your sign-in details private.

8. Beta services. Pivotext is currently offered as a beta, and we may label other features as beta or early access. Beta services may change, have errors, or be withdrawn, and you use them at your own risk. We'll try to tell you before a beta feature becomes a paid feature.

What Pivotext is, and what it isn't

Pivotext organizes your trading-business records. It isn't an accountant, tax adviser, broker or prop firm, and it doesn't make decisions for you.

9. A record-keeping tool. Pivotext helps you record costs and payouts, link them to the accounts they belong to, and prepare statements and exports for you and your accountant. It does not file anything with any tax authority.

10. No professional advice. Nothing in Pivotext is tax, accounting, legal, financial or investment advice. Pivotext doesn't decide what is deductible, how anything is treated for tax, or whether any trading or business decision is a good one. Categories, flags and summaries are organizational aids only. Speak to a qualified professional about your situation.

11. AI-assisted receipt reading. When you upload a document, Pivotext uses an AI service to read it and suggest details such as vendor, date, amount, category and matching account. Suggestions can be wrong. Nothing is recorded until you review and confirm it, and you are responsible for what you confirm.

12. Exchange rates. Where Pivotext converts currencies, it uses published rates (such as Bank of Canada daily rates) or a rate you enter. Rates are provided for convenience; check that the rate used is appropriate for your purposes before relying on a converted amount.

13. Not affiliated with prop firms. Pivotext is independent. We are not affiliated with, endorsed by, or acting for any proprietary trading firm, broker or platform. Their names are used only to identify them, and their trademarks belong to them. Your agreements with those firms are between you and them.

Pricing and payment

Pivotext is free during the beta. When paid plans launch, you'll see the price before you're charged, and you can cancel any time.

14. Free during the beta. We don't charge for the services during the beta. We'll give you notice before any feature you use becomes paid, and we won't charge you unless you choose a paid plan.

15. Paid plans. A **paid plan** includes the features, price, billing period and renewal terms shown when you subscribe. Those details form part of these terms. Payments are processed by our payment processor, and you authorize us to charge your chosen payment method for each billing period.

16. Automatic renewal. Paid plans renew automatically at the end of each billing period at the then-current price until you cancel. You can cancel from your account settings or by emailing us, and cancellation takes effect at the end of the period you've paid for.

17. Price changes. We may change the price of a paid plan. We'll give you at least 30 days' notice by email before a price increase applies to you, and it will start with your next billing period after that notice, so you have time to cancel if you don't want to continue.

18. Taxes. Prices are shown in the currency stated and exclude applicable sales taxes such as GST, HST, PST or QST unless we say otherwise. You're responsible for those taxes where they apply.

19. Late or failed payments. If a payment fails, we'll tell you and try again. If it still hasn't been paid 14 days after it was due, we may suspend paid features until it is. You can still export your records while suspended.

Your data and privacy

Your records belong to you. We only use them to run Pivottext for you, as explained in our Privacy Notice, and you can export them at any time.

20. You own your data. You keep ownership of the records, receipts and other content you put into Pivottext (**your data**). We don't claim any ownership of it.

21. How we're allowed to use it. You give us permission to store, copy, process, transmit, display and back up your data, and to share it with our service providers, only as needed to provide, secure, support and maintain the services for you, to comply with the law, and as described in our Privacy Notice. We don't sell your data.

22. Personal information. Our [Privacy Notice](#) explains how we collect, use and share personal information, including receipts processed by our AI service provider in the United States. It forms part of these terms.

23. Information about other people. If your data includes information about other people, such as a name on an invoice or an accountant you invite, you're responsible for having the right to share it with us for the purposes in these terms.

24. De-identified statistics. We may create aggregated statistics that do not identify you or any individual, such as how many receipts are processed each month, and use them to run and improve Pivottext.

25. Exporting your data. You can export your records from Pivottext at any time while your account is open, and during the export period after it closes (see section 42).

Security

We protect your data with safeguards suited to financial records. You protect your sign-in and tell us quickly if something looks wrong.

26. Our safeguards. We use technical and organizational measures designed to protect your data, including encryption in transit and at rest and access controls that

keep each entity's records separate. No system is completely secure, so we can't guarantee that unauthorized access will never happen.

27. Your part. Use a strong, unique password, don't share your sign-in with anyone, and turn on any extra security features we offer. You are responsible for activity that happens under your account unless it results from our failure to protect our systems.

28. Tell us about problems. If you think someone has used your account without permission, or you find a security weakness in Pivotext, email support@pivotext.com right away. We may restrict access to an account while we investigate.

Third-party services

Pivotext relies on, and connects with, services run by other companies. Their own terms apply to them.

29. Services we rely on. We use trusted service providers for hosting, storage, email, payment processing and AI document reading. They are listed in our [Privacy Notice](#). We are responsible for how we choose and instruct them, but not for outages or failures of services outside our reasonable control.

30. Services you use. Prop firms, brokers, banks, payment platforms and accounting software you use alongside Pivotext are independent of us. Their terms, fees and privacy practices apply, and we aren't responsible for them or for information they provide.

Availability, changes and support

We work to keep Pivotext running and your data safe, but no online service is available all the time. Keep your own copies of important records.

31. Availability. We aim to keep the services available at all times, but they may occasionally be unavailable because of maintenance, updates, internet problems or

events outside our control. We'll try to give notice of planned maintenance where practical.

32. Keep your own copies. We back up our systems, but data loss is a risk with any technology. Pivottext doesn't replace your own obligation to keep records for tax and legal purposes. Export and keep copies of anything you need.

33. Changes to features. We regularly improve Pivottext and may add, change or remove features. If we remove a feature that is a material part of a paid plan you're on, we'll give you notice, and you may cancel and receive a pro-rated refund of any prepaid fees for the unused period.

34. Support. For help, email support@pivottext.com. We'll respond as soon as we reasonably can.

Acceptable use

Use Pivottext honestly and lawfully, and don't interfere with it or with anyone else's use of it.

35. Feedback. If you send us ideas or suggestions, we may use them freely without owing you anything.

36. Lawful use. You may use Pivottext only for lawful record-keeping for yourself or the entities you're authorized to act for.

37. Things you must not do. You must not:

- use Pivottext to create false, altered or misleading records, for example to deceive a tax authority, lender, prop firm or any other person;
- upload documents you don't have the right to use, or anything containing malware;
- try to access another user's data or any system you're not authorized to access, or test our security without our written permission;
- disrupt, overload or interfere with the services, including through automated scraping or excessive requests;

- copy, modify, reverse engineer or decompile any part of Pivotext, except as the law expressly allows;
 - resell, sublicense or provide Pivotext to others as a service without our written agreement;
 - use Pivotext in breach of any law, including sanctions and privacy laws; or
 - abuse, threaten or harass our team or other users.
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Ending your account

You can leave whenever you like. We can end our agreement with notice, or immediately if these terms are seriously broken. You'll have time to export your records.

38. How long these terms last. These terms apply from when you first use Pivotext until your account is closed.

39. Cancelling or closing your account. You can cancel a paid plan or close your account at any time from your settings or by emailing us. A paid plan stays active until the end of the period you've paid for.

40. When we can end or suspend your access. We may end these terms for any reason by giving you at least 30 days' notice. We may suspend or end your access immediately, with notice where we lawfully can, if you seriously or repeatedly breach these terms, if we reasonably believe your use is fraudulent, unlawful or puts Pivotext or others at risk, or if the law requires it. If we end these terms without cause, we'll refund any prepaid fees for the unused period.

41. Refunds. Except where these terms or the law say otherwise, fees already paid are not refundable, and we don't give credits for partial billing periods.

42. Your data after your account closes. After your account closes, you'll have 30 days to export your records, unless we closed it because of fraud or unlawful use. After that, we delete your data as described in our [Privacy Notice](#), except where the law requires us to keep it.

Liability

This part limits what each of us can claim from the other. It's important, so please read it carefully. Nothing in it removes rights you have under consumer protection laws that can't be excluded.

43. Your indemnity. You agree to cover our reasonable losses and costs, including reasonable legal fees, arising from a claim by a third party caused by your breach of these terms, your records, or your unlawful use of Pivotext, except to the extent the claim was caused by our own breach, negligence or misconduct.

44. Services provided as is. To the extent the law allows, the services are provided "as is" and "as available". We don't promise that they will be uninterrupted or error-free, that AI suggestions or converted amounts will be accurate, or that Pivotext will meet a particular purpose, and we exclude all implied warranties and conditions that can lawfully be excluded.

45. Limits on our liability. To the extent the law allows:

- we are not liable for indirect, incidental, special, consequential or punitive losses, or for lost profits, revenue, trading gains or opportunities, or for tax, penalties, interest or compliance consequences of records you confirmed, filed or relied on;
- for loss or corruption of data, our responsibility is to make reasonable efforts to restore it from our available backups; and
- our total liability for all claims relating to the services or these terms is limited to the greater of the fees you paid us in the 12 months before the event giving rise to the claim, and CAD \$100.

These limits don't apply to liability that the law does not allow us to limit, such as for fraud or wilful misconduct.

Disputes

If something goes wrong, tell us first. Most problems can be fixed quickly.

46. Try to resolve it with us first. If you have a complaint, email support@pivottext.com with the details. We'll work with you in good faith to resolve it. If it isn't resolved within 30 days, either of us may take it further as set out in section 57.

General terms

The remaining terms cover how this agreement works in practice.

47. What we own. We and our licensors own Pivottext, including its software, design, text, logos and the Pivottext name and marks. Apart from the limited right to use the services in these terms, you don't receive any rights in them.

48. Events outside our control. We aren't responsible for failures or delays caused by events beyond our reasonable control, such as outages of internet or cloud providers, natural events, labour disputes or government action.

49. Notices. You can send us notices at support@pivottext.com. We'll send notices to the email address on your account, or show them in the app. Keeping your email address current is your responsibility.

50. Consumer rights. If you use Pivottext as a consumer, you may have rights under the consumer protection laws of your province that can't be excluded by contract. Nothing in these terms limits those rights.

51. Sanctions. You confirm you are not located in a country, or listed as a person, subject to Canadian sanctions, and that you won't use Pivottext in breach of sanctions or export laws. We may block access or refuse service where we reasonably believe there is a legal or regulatory risk.

52. Our relationship. These terms don't create a partnership, joint venture, employment or agency relationship between you and us.

53. Transferring these terms. You may not transfer these terms without our written consent. We may transfer them to an affiliate or to a buyer of all or part of our business, and we'll tell you if we do.

54. Changes to these terms. We may update these terms. The date at the top shows the latest version. For material changes, we'll give you at least 30 days' notice by email or in the app before they take effect. Changes don't apply retroactively. If you don't agree with a change, you can close your account before it takes effect; continuing to use Pivottext after that means you accept it.

55. If part of these terms can't be enforced. If a court finds any part of these terms unenforceable, that part will be limited to the minimum extent necessary and the rest will remain in effect. If we don't enforce a term right away, we haven't waived our right to enforce it later.

56. Entire agreement. These terms, together with our Privacy Notice and the details of any paid plan you choose, are the whole agreement between you and us about the services and replace any earlier agreement on that subject. Words like "including" don't limit the words before them.

57. Contracting entity, governing law and courts. You contract with **Pivottext Software Inc.**, a British Columbia company (Incorporation No. BC1609637), based in Vancouver, British Columbia. These terms are governed by the laws of British Columbia and the federal laws of Canada that apply there. Subject to any non-excludable right you have as a consumer to bring proceedings where you live, the courts of British Columbia have exclusive jurisdiction, and claims within the monetary limit of the Civil Resolution Tribunal or Small Claims Court of British Columbia may be brought there.

That's everything. Thanks for reading our terms.